

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cordell Hackshaw	Team: Team # 3	CCRB Case #: 200904381	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 03/21/2009 1:30 AM	Location of Incident: 1259 Pacific Street	18 Mo. SOL 9/21/2010	Precinct: 77
Date/Time CV Reported Sat, 03/21/2009 1:54 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 03/21/2009 1:54 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Granahan	26635	926899	077 PCT
2. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Anthony Vitale	21200	926263	077 PCT
2. POM Christop Mastoros	14867	937041	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Matthew Granahan	Force: PO Matthew Granahan used physical force against § 87(2)(b)	A . Exonerated
B . An officer	Force: An officer used physical force against § 87(2)(b)	B . Officer(s) Unidentified

Case Summary

§ 87(2)(b) filed this complaint via the Call Processing System of the Civilian Complaint Review Board (CCRB) on behalf of her boyfriend § 87(2)(b) on March 21, 2009 (**Encl. B1-B2**).

On the aforementioned date at approximately 1:30 a.m., in front of 1259 Pacific Street in Brooklyn, PO Matthew Granahan, PO Anthony Vitale and PO Christopher Mastoros from the 77th Precinct, approached § 87(2)(b)'s car, which was in front of a fire hydrant. The following allegations resulted from the officers' actions:

- **Allegation A – Force:** PO Matthew Granahan used physical force against § 87(2)(b) § 87(2)(g). It is recommended that **Allegation A** be closed as **Exonerated**.
- **Allegation B – Force:** An officer used physical force against § 87(2)(b) § 87(2)(g) it is recommended that **Allegation B** be closed as **Officer(s) Unidentified**.

§ 87(2)(g)

Results of Investigation

Civilian Statement

Complainant: § 87(2)(b)

§ 87(2)(b) was not a witness to this incident and did not provide any statements to the CCRB.

Victim: § 87(2)(b)

- § 87(2)(b) is § 87(2)(b)-old black male § 87(2)(b) and has black hair and black eyes.

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on April 9, 2009 (**Encl. B3-B7**).

On March 21, 2009 at approximately 1:00 a.m., § 87(2)(b) was parked on Pacific Street between Nostrand and Bedford Avenues in Brooklyn in a green 1996 Oldsmobile. § 87(2)(b) and § 87(2)(b) (last name unknown) were also in the car in the front passenger seat and back seat behind the passenger seat respectively. § 87(2)(b) mother lives on Nostrand Avenue and they had stopped in front of a fire hydrant so that § 87(2)(b) could go to the bathroom. While § 87(2)(b) was in the bathroom, § 87(2)(b) and § 87(2)(b) remained in the car chatting with each other. About 15 minutes later, § 87(2)(b) returned to the car. As § 87(2)(b) was about to drive off, he looked to his left and saw three plainclothes officers identified through investigation as PO Matthew Granahan, PO Anthony Vitale and PO Christopher Mastoros, exit from a black Impala that was parked across the street.

PO Granahan approached the driver's window and told § 87(2)(b) to park his car. § 87(2)(b) § 87(2)(b) complied and parked in front of the fire hydrant. PO Granahan then asked § 87(2)(b) for his license and registration and § 87(2)(b) complied. PO Vitale and PO Mastoros were also on the driver's side behind PO Granahan. At this point, § 87(2)(b) asked PO Granahan why he was stopped to which PO Granahan replied that it was because he was parked in front of a fire

hydrant. § 87(2)(b) responded, “I was pulling away from the hydrant.” PO Granahan interrupted § 87(2)(b) and stated, “Don’t ask me any questions.” PO Vitale also stated, “Oh, he thinks he’s a tough guy.” § 87(2)(b) added, “Well everything’s legit.” PO Granahan then asked § 87(2)(b) to step out of the car. § 87(2)(b) asked why he had to step out of his car. PO Granahan replied, “These are my streets, so you gotta do what I say.” § 87(2)(b) added, “Alright, but I’m not stepping out of my car unless you show me your badge.” At this point, § 87(2)(b) saw PO Granahan use a radio device, and two additional unidentified plainclothes officers arrived in an unmarked dark colored car, exited it and approached § 87(2)(b) car. PO 4 approached the passenger door, began reaching through the open window and attempted to open the passenger door of § 87(2)(b) car from the inner side of the door. As § 87(2)(b) car is relatively old, opening the doors require some force. None of the doors were locked. § 87(2)(b) asked PO 4 to see his badge and PO 4 showed it to § 87(2)(b). § 87(2)(b) could not remember what numbers were on PO 4’s badge. Having seen the badge, § 87(2)(b) put his hands in his pockets and stepped out of his car. At this point, the five officers formed a semi-circle around § 87(2)(b). § 87(2)(b)’s back was toward the driver’s door. PO Granahan told § 87(2)(b) to place his hands behind his back. § 87(2)(b) complied.

At this point, § 87(2)(b) turned his head and saw § 87(2)(b) and § 87(2)(b) outside of the car and that they were handcuffed. § 87(2)(b) did not see any officer interacting with § 87(2)(b) and § 87(2)(b) as § 87(2)(b)’s back was towards the driver’s side of the car. PO Granahan grabbed § 87(2)(b) by both of his arms, turned § 87(2)(b) around and pushed his chest towards the driver’s side of the car. As § 87(2)(b) lay against the car, PO Granahan struck § 87(2)(b) once on the right side of his face. The blow caused § 87(2)(b) to feel lightheaded, and § 87(2)(b) was then forced to the ground onto his right side. One of the officers handcuffed § 87(2)(b) at this point but § 87(2)(b) could not determine which of the officers did so. Possibly another officer then stood over § 87(2)(b) with each foot on either side of his body. § 87(2)(b) was struck on the left side of his face approximately 7 to 8 times but did not see who struck him. At this point, § 87(2)(b) screamed, “Why ya’ll hit me,” and saw that blood was falling from his left ear. The blows caused § 87(2)(b)’s two stud earrings to detach from their stems, causing them to cut into § 87(2)(b)’s skin. § 87(2)(b) stated that he did not resist in any way. § 87(2)(b)’s friends, § 87(2)(b) and § 87(2)(b) were not arrested. They were released at the scene.

At this point, a uniformed officer placed § 87(2)(b) in a marked patrol car and transported him to the 77th Precinct stationhouse. En route to the 77th Precinct stationhouse, § 87(2)(b) felt his face swelling. When § 87(2)(b) was allowed to make a call, he telephoned § 87(2)(b) his girlfriend who filed this complaint with the CCRB at approximately 1:54 a.m. on March 21, 2009. While at the 77th Precinct stationhouse, § 87(2)(b) asked for medical services and was taken to the § 87(2)(b) via ambulance. § 87(2)(b) was released on the same day from the hospital and returned to the 77th Precinct stationhouse for arrest processing. § 87(2)(b) was arrested for § 87(2)(b). § 87(2)(b) admitted that he had two bottles of Bacardi Rum in his possession at the time the officers stopped his car. § 87(2)(b) maintained that neither bottles were opened at the time.

Statement to Medical Provider

On § 87(2)(b), § 87(2)(b) told EMS and the staff at § 87(2)(b) that he was punched/assaulted by police officers during his arrest and that his face hurt a lot (Encl. D3).

Attempts to Contact Civilians

In an attempt to positively identify officers, the CCRB sent § 87(2)(b) two please call letters to view a photo array on September 14, 2009 and on September 30, 2009. § 87(2)(b) contacted the CCRB on September 30, 2009 stating that he would have his friends, § 87(2)(b) and “§ 87(2)(b)” contact the CCRB and that he would call back the CCRB in order to schedule an appointment for the photo array. As of the date of this report, § 87(2)(b) has not contacted the CCRB. When the CCRB attempted to contact § 87(2)(b) via telephone on October 26, 2009, an automated message stated that the number was out of order.

In an effort to get witness statements, the CCRB sent two please call letters to § 87(2)(b) on April 15, 2009 and on May 13, 2009. § 87(2)(b) never provided any contact information for § 87(2)(b) and without a last name, the CCRB was unable to identify him. Although § 87(2)(b) promised to have them contact the CCRB, as of the date of this report, neither § 87(2)(b) nor § 87(2)(b) has contacted the CCRB. Additionally, neither § 87(2)(b) nor § 87(2)(b) was arrested at the scene, and additional contact information could not be obtained via an arrest report or a UF-250.

The CCRB also attempted to contact § 87(2)(b) the person who called 911 at the time of the incident. The CCRB sent two please call letters to § 87(2)(b) on May 13, 2009 and September 14, 2009. On October 26, 2009, the CCRB contacted § 87(2)(b) who stated that he was a witness to the incident. He refused to provide an official statement or cooperate fully in providing a phone statement. However, he confirmed that he called 911 on March 21, 2009, and stated that he called because he saw an officer with his foot on top of § 87(2)(b) who was lying on the ground, screaming for the officer to stop and get off of him. § 87(2)(b) said that § 87(2)(b) was not resisting and that the two other officers were just standing at the side.

NYPD Statements:

Subject Officer: PO MATTHEW GRANANHAN

- PO Granahan is a § 87(2)(b)-old white male, § 87(2)(b) and has brown hair and green eyes
- PO Granahan worked from 8:30 a.m. on March 20, 2009 to 5:05 a.m. on March 21, 2009, and was assigned to the 77th Precinct Anti-Crime Unit. He was working with PO Christopher Mastoros and PO Anthony Vitale. They were dressed in plainclothes and using an unmarked black RMP.

Memo book

At 1:53 a.m., § 87(2)(b) (date of birth § 87(2)(b)) was arrested in front of 1259 Pacific Street for § 87(2)(a) 160.50
§ 87(2)(b) (Encl. C1-C2).

Criminal Complaint and Arrest Reports

§ 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

CCRB Statement

PO Matthew Granahan was interviewed at the CCRB on October 26, 2009 (**Encl. C7-C8**).

On March 21, 2009, at approximately 1:30 a.m., PO Granahan saw a car parked in front of a fire hydrant as he and the other officers were driving westbound on Pacific Street. The officers parked behind the car and got out. PO Granahan could partially see into the car but saw that there were two male occupants inside the car. They were both in the front. PO Granahan was on the driver's side along with PO Vitale and PO Mastoros was on the passenger's side. The officers did not have their guns drawn. PO Granahan did not recall who initially spoke to the driver, identified as § 87(2)(b). § 87(2)(b) did not roll down his windows when the officers approached the vehicle. He kept it up for a while and then eventually rolled the windows down midway. When the officers asked § 87(2)(b) for his license and vehicle information, he became non-compliant and refused to provide the information to the officers. The officers asked § 87(2)(b) numerous times for his information but § 87(2)(b) refused. PO Granahan did not recall if § 87(2)(b) offered any reason as to why he was not complying. As PO Granahan was standing there patiently waiting on § 87(2)(b) he saw a bottle of Bacardi rum inside the car, which was either on one of the front seats or on the floor. PO Granahan did not recall specifically where the bottle was. However, he stated that that cover was on. It did not appear that § 87(2)(b) was drinking nor did PO Granahan think that § 87(2)(b) was under the influence of drugs. After some time, PO Granahan asked § 87(2)(b) to step out of the car. PO Granahan did not recall how long he waited before he asked § 87(2)(b) to get out of the car. § 87(2)(b) continued to be non-compliant but then eventually stepped out of the vehicle voluntarily.

When § 87(2)(b) got out of the car, he placed his hands immediately into his pockets. PO Granahan then asked § 87(2)(b) approximately three times to take his hands out of his pocket. PO Granahan added that if he did not comply, he would be placed under arrest. § 87(2)(b) refused to and PO Granahan told § 87(2)(b) that he was going to be placed under arrest. He instructed § 87(2)(b) to turn around and place his hands behind his back but § 87(2)(b) did not comply. Finally, PO Granahan approached § 87(2)(b) and placed a hand on one of § 87(2)(b)'s wrist in order to place him in handcuffs. At that point, § 87(2)(b) pulled his hands out of his pocket and flung his hands up in a fighting stance. PO Granahan punched § 87(2)(b) once in the face. § 87(2)(b) never punched PO Granahan. A struggle ensued between PO Granahan and § 87(2)(b). § 87(2)(b) began flailing his arms and kicking at PO Granahan. He kicked PO Granahan in the leg several times. The struggle ended up on the ground. PO Vitale and PO Mastoros joined in to assist. An officer called for back up but PO Granahan did not recall which officer did so. Several unidentified uniformed officers arrived on the scene at this point. A couple of them assisted in restraining § 87(2)(b). PO Granahan did not see any officer punching or kicking § 87(2)(b). PO Granahan never saw any officer placing their foot on § 87(2)(b). PO Granahan did not recall any officer punching § 87(2)(b) in the face several times. PO Granahan did not recall § 87(2)(b) being injured or bleeding at the scene. PO Granahan stated that § 87(2)(b) "claimed" injury when he said that the left side of his face was injured and swollen and he was taken to the hospital. PO Granahan did not take § 87(2)(b) to the hospital. The other male was identified and allowed to leave the scene.

Witness Officer: PO ANTHONY VITALE

- PO Vitale is a § 87(2)(b)-old white male § 87(2)(b) and has brown hair with brown eyes.
- PO Vitale worked from 8:30 p.m. on March 20, 2009 to 5:05 a.m. on March 21, 2009. He was assigned to the 77th Precinct Anti-Crime Unit with PO Matthew Granahan and PO Christopher Mastoros. They were dressed in plainclothes and in an unmarked RMP, a black Impala.

Memo Book

On March 21, 2009, at 1:53 a.m., PO Granahan arrested one person in front of 1259 Pacific Street (**Encl. C9-C10**).

CCRB Statement

PO Anthony Vitale was interviewed at the CCRB on October 26, 2009. He provided a similar stated as PO Granahan with the following discrepancies (**Encl. C11-C12**).

On March 21, 2009, at approximately 1:30 a.m., PO Vitale, PO Granahan and PO Mastoros were driving along Pacific Street and crossing Nostrand Avenue in the Brooklyn. PO Vitale was driving but he could not recall where exactly the other two officers were located in the RMP. PO Vitale observed a vehicle parked at a fire hydrant, which was in front of 1259 Pacific Street in Brooklyn. PO Vitale and PO Granahan approached on the driver's side and PO Mastoros went to the passenger's side. PO Vitale stated that he was not able to see much into the car as he approached but as soon as he approached the car, he saw an open container of alcohol. PO Vitale stated that he did not recall the specific type of alcohol that was in the car. PO Vitale did not recall where he saw the alcohol in the car. PO Vitale asked the driver, identified as § 87(2)(b) for his driver's license. § 87(2)(b) refused and became very verbally combative and irate at the officers' presence. § 87(2)(b) stated the officers were not real officers. The officers identified themselves again and showed § 87(2)(b) their shields. However, § 87(2)(b) refused to comply and after failed several attempts by PO Vitale and PO Granahan to have § 87(2)(b) give them his license and registration, the officers asked § 87(2)(b) to step out of the car. § 87(2)(b) continued to refuse to comply. After several minutes, he got out of the car voluntarily. As soon as he got out, he placed his hands into his pockets. PO Vitale and PO Granahan asked § 87(2)(b) to take his hands out of his pocket but he did not comply initially. PO Granahan was standing about two feet in front of PO Vitale. Finally, § 87(2)(b) took his hands out of his pocket but in pulling out his hands, his arms almost struck PO Granahan. § 87(2)(b) did not strike PO Granahan.

PO Granahan and PO Vitale decided to place § 87(2)(b) under arrest and asked him to turn around and place his hands behind his back. § 87(2)(b) again refused to comply and began swinging his arms. PO Vitale and PO Granahan got into a physical struggle with § 87(2)(b). They tried to get his hands behind him in order to handcuff. They all fell to the ground and § 87(2)(b) tried to place his arms under his chest. This physical struggle lasted about 10-15 seconds. PO Vitale and PO Granahan were the only two officers involved in the physical struggle. Finally, the officers were able to handcuff § 87(2)(b). PO Vitale did not recall whose handcuffs were used in order to restrain § 87(2)(b). § 87(2)(b) was then placed in a marked RMP and taken to the 77th Precinct stationhouse. The passenger of the car, a male, was released on the scene. PO Vitale did not recall other officers responding as backup and being involved in the incident. PO Vitale did not recall any officer striking § 87(2)(b) across his face after he was placed in handcuffs. PO Vitale did not recall any officer punching § 87(2)(b) several times. PO Vitale did not recall any officer stepping on § 87(2)(b). PO Vitale did not recall § 87(2)(b) being injured or bleeding from any of his orifices. PO Vitale did not recall § 87(2)(b) asking for medical attention. PO Granahan searched the car at the stationhouse and a box of ammunition was found.

Witness Officer: PO CHRISTOPHER MASTOROS

- PO Mastoros is a § 87(2)(b) -old white male § 87(2)(b) and has black hair with brown eyes.
- PO Mastoros was assigned to the 77th Precinct Anti-Crime Unit from 7:05 p.m. on March 20, 2009 to 4:45 a.m. on March 21, 2009. He was working with PO Anthony Vitale and PO Matthew Granahan. They were dressed in plainclothes and using an unmarked RMP.

Memo book

At 1:45 a.m., one person was arrested in front of 1259 Pacific Street. At 1:55 a.m., the perpetrator was taken back to the stationhouse. At 2:10 a.m., PO Mastoros arrived at the stationhouse and PO Granahan was the arresting officer (**Encl. C13**).

CCRB Statement

PO Christopher Mastoros was interviewed at the CCRB on November 12, 2009. § 87(2)(g)

On March 21, 2009, at approximately 1:30 a.m., PO Mastoros, PO Granahan and PO Vitale were traveling westbound on Pacific Street when they observed a car parked in front of a fire hydrant. They approached the vehicle. PO Mastoros did not recall whether he could see into the car as they were approaching the vehicle. PO Granahan and PO Vitale went to the driver's side and PO Mastoros went to the passenger's side. PO Mastoros did not detect any odor of alcohol or other contraband coming from the car. PO Mastoros was not able to hear clearly the conversation between the PO Granahan and § 87(2)(b). However, it was clear that § 87(2)(b) was yelling and cursing at PO Granahan. PO Granahan then asked § 87(2)(b) to step out of the vehicle, which § 87(2)(b) did unaided by the other officers with some initial hesitation. § 87(2)(b) stated at one point, "I am not getting out of this fucking car!" When § 87(2)(b) finally got out of the car, he placed his hands into his pockets. Several minutes had already passed since their initial approach. PO Granahan repeatedly asked § 87(2)(b) to take his hands out of his pockets. At this time, PO Mastoros came around to the driver's side of the vehicle. § 87(2)(b) continued to refuse comply and then finally quickly pulled his hands out. He then put up his hands, fists up and took a fighting stance. PO Mastoros went up behind § 87(2)(b) at this time, got in front of § 87(2)(b) and placed him in a bear hug, grabbing § 87(2)(b) upper body. § 87(2)(b) did not punch PO Granahan nor did he take a swing at PO Granahan. PO Mastoros tried to pull § 87(2)(b) to the ground. § 87(2)(b) began resisting and tried to get his hands under his stomach, continually refusing to allow the officers to handcuff him. § 87(2)(b) was eventually placed in handcuffs, picked up off the ground and then placed in the back of an RMP. PO Mastoros never struck § 87(2)(b) in the face during the interaction nor did PO Mastoros see any other officers striking § 87(2)(b) in the face, head or ears. PO Mastoros never kicked § 87(2)(b) nor saw any other officer doing so. § 87(2)(b) never punched nor kicked PO Mastoros but may have struck other officers. It took about a minute to restrain § 87(2)(b). Uniformed officers arrived on the scene. They were most likely from the 77th Precinct. PO Mastoros did not recall who the officers were. He believed that PO Vitale may have radioed for additional units. PO Mastoros did not recall any other plainclothes units being present on the scene.

Medical Records

§ 87(2)(a) PHL § 18(6)

NYPD Documents

SPRINT

According to the SPRINT record, at approximately 1:14 a.m. on March 21, 2009, an anonymous male caller reported to 911 that he was seeing police brutality taking place on Pacific Street between Bedford and Nostrand Avenues. Another caller, § 87(2)(b) called to report the same incident (**Encl. E1-E2**).

77th Precinct Command Log

According to the command log for March 21, 2009, § 87(2)(b) arrived at the stationhouse at 1:35 a.m. His physical and mental conditions were noted as being apparently normal. § 87(2)(b) was taken to § 87(2)(b) at § 87(2)(b) and taken to Brooklyn Central Booking at 9:00 a.m. on March 22, 2009 (**Encl. E3**).

Medical Treatment of Prisoner Report

Despite requesting this document, the CCRB did not receive a copy of this report.

Prisoner Holding Pen Roster

This report shows that § 87(2)(b) was lodged in the 77th Precinct stationhouse cells at 1:40 a.m. on March 21, 2009 and then taken to the hospital at approximately 2:00 a.m. (**Encl. E6**).

Property Voucher

Vouchered to § 87(2)(b) was arrest evidence of 31 Winchester 25mm-automatic rounds, a package of Big Bambu rolling paper and two 200ml bottles of Bacardi rum, the contents of which were removed by PO Granahan (**Encl. E7**).

Arrest Photo

§ 87(2)(b)'s arrest photo show that there was visible swelling to the left side of his face. There was no sign of blood either on his face or clothing (**Encl. B8**).

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [REDACTED]

Status of Civil Proceedings

- § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the City of New York as of December 31, 2009, with regard to the incident.

Civilian's Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [REDACTED]

Team: _____

:

Investigator: _____ Cordell Hackshaw _____
Signature Print Date

Supervisor: _____ _____ _____
Title/Signature Print Date

Reviewer: _____ _____ _____
Title/Signature Print Date

Reviewer: _____ _____ _____
Title/Signature Print Date